



## Notice to All Bidders

### Ministry of the Solicitor General

NOTICE TO ALL PROSPECTIVE BIDDERS – Addendum Issued: **November 8, 2024**

#### **ADDENDUM No.4**

**Request for Bids (RFB): # OPP-1984 / Tender# 20070**

**For:**

**For Supply and Delivery of Ammunition**

**RFB Closing Date: December 13th, 2024, at 11:00:00 a.m. (Toronto time).**

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As per Section 1.3.1 of Part 4 (Terms and Conditions) of the above noted RFB, Bidders are reminded that this Addendum #4 shall form an integral part of the RFB. Bidders are responsible for obtaining all addenda issued by the Ministry on Ontario Tender Portal (<https://ontariotenders.app.jaggaer.com>)

| #  | Part A: Questions and Answers                                                                                                                                                                                                                                                                                                                                                                            |
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| Q1 | We are a green company. We deliver our ammunition in ammunition cans. Is this acceptable?                                                                                                                                                                                                                                                                                                                |
| A1 | Part 3, The Deliverables, Section 1.8 Packaging and Identification has been amended. <b>Refer to Amendment No. 4</b>                                                                                                                                                                                                                                                                                     |
| Q2 | I wanted to seek some clarification regarding the above noted tender. During the information session last week it was mentioned that the number of samples required would vary depending on the round. The only mention of the number of samples needed that I can find refers bidders to ANSI/ASQ Z-1.4-2003 (R2013) Table I-samples size code letters, General inspection level II, Table III-A Double |

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|    | <p>Sampling Plan for normal inspection (Master table).</p> <p>Are bidders supposed to consult this table to determine the number of samples that will be required for each round they are bidding on?</p> <p>Is the OPP able to provide bidders with a list of the number of samples that will be needed to evaluate each round?</p>                                                                      |
| A2 | <p>Category A, sample requirements are listed in the Qualification Envelope, 1.4 Evaluation Process, section 1.4.4 Stage 3(a) – for Category A Only – Technical Response Evaluation.</p>                                                                                                                                                                                                                  |
| Q3 | <p>I had an additional question for the following line items :</p> <p>Line item 15 - Slug, Training, Frangible, Lead Free</p> <p>Line item 18 – 00 Buck, Training, Lead Free</p> <p>Would the OPP consider a standard non lead free primer for these two line items?</p>                                                                                                                                  |
| A3 | <p>All category A Ammunition samples are required to meet the specifications for each line-item.</p> <p>Where a specification calls for “lead free”, Bidders are required to submit samples that are “lead free”.</p>                                                                                                                                                                                     |
| Q4 | <p>With respect to “6 month set up” period: is it the intent to have one initial, large order (OPP &amp; Co-op participants; A &amp; B products) and vendors will have 6 months to fulfill?</p> <p>And if this is correct, can we assume that all subsequent orders will have a 6 month delivery requirement?</p>                                                                                         |
| A4 | <p>It is not the intent to issue one large order for Category A and Category B.</p> <p>Part 3 – The Deliverables, Section 1.6.1 Initial Set Up Time is for six (6) months to allow Vendors to take care of any logistical requirements and secure Ammunition.</p> <p>All subsequent orders are subject to Section 1.6.2 Regular Orders and Delivery Lead Time delivery requirement of six (6) months.</p> |
| Q5 | <p>Is the Styrofoam packaging prohibition applicable to Section B offerings and, if so, can that be waived?</p> <p>While we understand this requirement for specified Section A products, Section B</p>                                                                                                                                                                                                   |

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|    | represents established catalog products and a modification to these items may restrict/ limit participation.                                                                                                                                                                                                                                                                                                                                                                                                     |
| A5 | Yes, the packaging and identification is a requirement for Category A and Category B. If the Styrofoam doesn't leave pilling or residue, then it is acceptable. Refer to Section 1.8 Packaging and Identification.                                                                                                                                                                                                                                                                                               |
| Q6 | It is understood that the Ministry intends to award one item per line in both Sections A & B. Will these awards be "lowest price/technically acceptable" or a "best value tradeoff"?                                                                                                                                                                                                                                                                                                                             |
| A6 | <p><u>Category A</u> Ammunition will be awarded based on highest scoring compliant Bid. The evaluation is based on 80% Technical and 20% price.</p> <p><u>Category B</u> Ammunition will be awarded based on lowest price. (Total Price submitted in the Commercial Envelope, to determine the lowest priced compliant Bid for each line item in Category B).</p>                                                                                                                                                |
| Q7 | If Section B training ammunition is required to ballistically match a vendor's submitted duty rds, then how does the Ministry intend to award these items....as a pair/group? Or will the Ministry first decide upon a duty round then choose any vendor's training ammo that represents the best ballistic match?                                                                                                                                                                                               |
| A7 | <u>Category B</u> will be awarded by line-item and based on lowest priced compliant bid.                                                                                                                                                                                                                                                                                                                                                                                                                         |
| Q8 | <p>Section B training requirements require a non-leaded projectile. Core materials that are typically used to achieve this tend to be considerably lighter/less dense than the traditional lead weighted duty projectiles they are intended to match.</p> <p>Achieving that ballistic match would be very challenging at best. Would the Ministry allow for leaded encapsulated/base protected projectiles with Nontoxic primers (similar to the Section A requirement) to achieve a better ballistic match?</p> |
| A8 | Rounds that include lead components should only be submitted under the line items where lead components are permitted.                                                                                                                                                                                                                                                                                                                                                                                           |
| Q9 | Would the Ministry waive the requirement to limit each pallet/skid to on day/lot code? The ability to price/delivery products "freight on board/included" demands shipping efficiency. Having to delivery incomplete skids is completely contrary to this efficiency. If Ministry cannot waive this requirement, then would the Ministry consider removing "freight on board/included" requirement and allow vendors to                                                                                          |

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|     | charge for shipping?                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| A9  | The Ministry will not accept “mixed-lots” on the same skid.<br>The Ministry will not waive the FOB requirement.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| Q10 | Please clarify pricing requirement: the RFP suggests a firm, initial 2-year period price with a negotiated 3rd year price; should the Ministry choose to extend. However, the pricing grid/spreadsheet provides a format that would suggest 3 years of separate, up-front pricing per period.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| A10 | <p>Bidders should provide pricing for year 1 2 and 3 in their bid submission for each line item for which they are submitting a bid.</p> <p>The unit price for Year 1 and 2 shall remain fixed during the term of the agreement.</p> <p>Should the Ministry decide to exercise its extension option (Year 3 – optional extension), the Vendor may request a price change that may take effect during the extension period, subject to the conditions set out in 1.10 Pricing Updates and Limitations. Only requests which meet these conditions and follow the described process will be considered by the Ministry. If approved by the Ministry, a price change will only be allowed once and only during the extension period if the optional extension is exercised by the Ministry.</p> |
| Q11 | Please clarify that the RFP does not suggest or intend for “Lot Acceptance Testing” (where vendors submit samples and holds deliverable inventory awaiting approval) and that the technical authority merely intends to conduct lot testing of delivered products.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| A11 | <p>Tech authority intends to conduct lot testing of delivered products. If product within a Lot is found to be non-compliant, then the Lot will have to be replaced at vendors cost as detailed in Attachment 18 PR-8310-OPP-All, Para 3(e)</p> <p>In the event that an ammunition-related failure or an ammunition-specific defect is encountered which exceeds the failure/defect rate established herein, the Ministry reserves the right to have the entire affected Lot/Date code replaced at no additional cost to the Ministry.</p>                                                                                                                                                                                                                                                  |

## **Part B: Amendments to the RFB**

### **Amendment No.4**

Section 1.8 Packaging and Identification of the RFB is hereby deleted and replaced with the following:

#### **Section 1.8 Packaging and Identification**

- a) Ammunition supplied by the Vendor shall be of the same lot number. If the order requires more than one (1) Lot, then the Vendor shipment must be separated by Lot number and placed on separate skids. Skids with mixed Lot numbers will not be accepted.
- b) Ammunition shipped on pallets and in cartons or cans of cartridges shall display the following information, in plain view, on at least one exterior side (other than top or bottom) of the stack for inventory management:
  - i. Manufacture's name
  - ii. Caliber/Gauge of the round/shell
  - iii. Projectile(s) weight and design
  - iv. Quantity of rounds/shells
  - v. Lot number(s) (it is preferable that the lot number also be printed in barcode for inventory management purposes)
  - vi. Product number or code
- c) Pallet weight shall be as close to 3500 lbs as possible (to the nearest full row). Maximum pallet weight shall be no more than 3500 lbs.
- d) The Ministry will not accept shipments on Canadian Pallet Council (CPCP) and or rental /returnable pallets.
- e) The insert, carton and case shall be designed to support the weight of the ammunition when palletized for shipping and storage.
- f) Styrofoam, high density polystyrene inserts and inserts that "pill" or leave observable particles or residue on the ammunition when removed from the insert, in the individual cartons is unacceptable.
- g) The Vendor packaging carton container inserts should be constructed of biodegradable or recyclable material to minimize environmental impact after disposal or to allow for recycling.

**[End of Addendum #4]**